

NON-DISCLOSURE AGREEMENT

This Agreement (the “**Agreement**”) is made on [Date] by and between (i) **Jane Aerospace Private Limited** (CIN U74999KA2019PTC130826) and its registered office at **2nd Floor, Ave Maria Complex, 100 ft Road, Jalahalli Cross Rd, Chokkasandra, Peenya, Bengaluru, Karnataka 560057, India** hereinafter referred to as the (“**Company**”), which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its affiliates, group entities, successors and permitted assigns; and (ii) [Company Name] having company identification/ registration number [Company Registration Number] and its registered office at [Address], hereinafter referred to as the “[ABC]”, which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns).

The Company and [ABC] are hereinafter collectively referred to as the “**Parties**” and individually referred to as the “**Party**”.

WHEREAS

- A. The Company and the [ABC] are engaged in their respective businesses, wherein they possess and utilize certain valuable Confidential Information (*defined below*). Confidential Information is integral to their business operations, competitive advantage, and overall success.
- B. The Company and the [ABC], both are interested to engage in discussions with each other for the purpose of exploring a potential transaction (“**Transaction**”), with the understanding that such discussions may involve the disclosure of Confidential Information by one Party to the other Party.
- C. The Parties acknowledge and recognize the importance of disclosing Confidential Information to each other on a strictly confidential basis, solely for the Transaction, to facilitate effective communication and evaluation of the Transaction.
- D. Both Parties acknowledge and agree that the Confidential Information shared by each Party is of a highly sensitive nature and is proprietary to their respective businesses. The Parties further acknowledge that any unauthorized disclosure, use, or dissemination of Confidential Information could result in substantial harm, including but not limited to financial losses, reputational damage, and legal consequences.
- E. The Parties are committed to establishing a comprehensive agreement that ensures the protection, confidentiality, and restricted use of the Confidential Information, with the primary goal of safeguarding the integrity of their respective Intellectual Property and fostering a relationship of trust and cooperation between the Parties.

NOW, THEREFORE, in consideration of the mutual promises and covenants set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1 DEFINITIONS

In the Agreement: (i) capitalized terms defined by inclusion in quotations and/ or parentheses have the meanings so ascribed; and (ii) the following terms shall have the

following meanings assigned to them herein below:

- 1.1 **"Affiliate"** means, in relation to any person (other than a limited partnership), any other person, directly or indirectly through one or more intermediaries, Controlling or Controlled by or under common Control with, such first-mentioned person, or in the case of a person which is a limited partnership, the partners of the person or their nominees or a nominee or trustee for the person, or any investors in a fund which holds interests, directly or indirectly, in the limited partnership or any entity which manages, advises and/or Controls any such entity.
- 1.2 **"Applicable Law"** shall mean all applicable laws, statutes, by-laws, rules, regulations, orders, enactments, ordinances, protocols, codes, guidelines, policies, notices, directions, rule of common law, decree, judgments or other requirements of any authority (including any similar form of decision of, or determination, application or execution by, or interpretation or pronouncement having the force of law), whether at the national /central level, state, or any other political subdivision thereof or issued by any entity, authority, or body exercising executive, legislative, judicial, regulatory, or administrative functions of or pertaining to government, including any Governmental Authority, agency, department, board, commission, or instrumentality or any political subdivision thereof, including those issued by any court, tribunal, arbitrator, securities exchange or body or authority regulating such securities exchange in India and any other applicable jurisdiction, in the context of and as applicable to the Person.
- 1.3 **"Confidential Information"** shall mean non-public, proprietary, or confidential information, whether written or oral, including without limitation any notes, analyses, compilation, studies or other documents (including excel files), record, notebook, plan, model, component, device, computer software or code and / or trade secret whether embodied in a disk or in any other form, including electronic form, in relation to the Parties or their business. It also includes information, including a formula, pattern, compilation, program, device, method, technique, or process that derives independent economic value (actual or potential), from being not generally known to, and not being readily ascertainable by proper means by, other persons who can derive economic value from its disclosure or use, including but not limited to the patented information and processes as well as the unpatented information and processes comprising, underlying, arising from, and associated with the respective Party and its business. Further the meaning of Confidential Information encompasses know-how, research and development, discoveries, ideas, concepts, papers, techniques, models, data, documentation, manuals, flow charts, research, process, procedures, functions, price lists, pricing policies, software, databases, inventions, processes, formulae, technology, designs, Intellectual Property, information concerning finances, investments, profits, pricing, costs, products, services, vendors, customers, clients, partners, investors, personnel, compensation, recruiting, training, advertising, sales, marketing, promotions, government and regulatory activities, and approvals concerning the business, activities, and operations of the Parties, its subsidiaries or affiliates, and/or any third party that has disclosed or provided any of the same to a Party on a

confidential basis.;

Notwithstanding the above, the Parties agree that information shall not be deemed Confidential Information, and neither Party shall have an obligation to hold such information in confidence, where such information:

- 1.3.1 is already known to a Party on a non-confidential basis, having been disclosed to such Party by a third party, provided such third party is not bound by a confidentiality agreement with or, other contractual legal or fiduciary obligation of secrecy to a Party;
 - 1.3.2 at the time of disclosure or thereafter, is or becomes publicly known, other than as a result of disclosure by the receiving Party or any of its Representatives in breach of this Agreement.
- 1.4 **"Cooling – Off Period"** shall have the meaning ascribed to it in Clause 8.2 (*Cooling – off Period*);
- 1.5 **"Governmental Authority"** shall mean the Government of India or of any state in India or any ministry, department, board, authority, instrumentality, agency, corporation (to the extent acting in a legislative, judicial or administrative capacity) or commission under the direct or indirect control of such government or any political subdivision of any of them or owned or controlled by the government or any of their subdivisions, or any court, tribunal, judicial or regulatory body within India or any other court, administrative agency or arbitrator.
- 1.6 **"Intellectual Property"** shall mean ideas, concepts, creations, discoveries, inventions, improvements, know how, trade or business secrets, trademarks, service marks, designs, utility models, tools, devices, models, methods, procedures, processes, systems, principles, software, brand, domain names, synthesis protocol, algorithms, works of authorship, flowcharts, drawings, books, papers, models, sketches, formulas, teaching techniques, proprietary techniques, research projects and other confidential and proprietary information, databases, data, documents, instruction manuals, records, memoranda, notes, user guides; in either printed or machine-readable form, whether or not copyrightable or patentable or protectable under any other intellectual property law, or any written or verbal instructions or comments;
- 1.7 **"Intellectual Property Rights"** shall mean (i) all rights, title and interest under any statute or under common law including patent rights, copyrights including moral rights; and any similar rights in respect of Intellectual Property, anywhere in the world, whether negotiable or not; (ii) any licenses, permissions and grants in connection therewith; (iii) applications for any of the foregoing and the right to apply for them in any part of the world; (iv) right to obtain and hold appropriate registrations in Intellectual Property anywhere in the world; (v) all rights, title and interest in computer software and computer software products now or hereafter existing, created, acquired or held (vi) all licenses or other rights to use any of the copyrights, Patents or Trademarks, and all license fees and royalties arising from such use to the extent permitted by such license or rights, (vii) all amendments, extensions and renewals thereof; and (viii) causes of action in the past, present or future, related thereto including the rights to damage and profits, due or accrued, arising out of past, present or future

infringements or violations thereof and the right to sue and recover the same.

- 1.8 **“Liquidated Damages”** shall have the meaning ascribed to it in Clause 11.1 (*Liquidated Damages*).
- 1.9 **“Representatives”** shall mean the officers, directors or employees of a Party who need to know the information and evaluating the information for the Transaction.

2 NON-USE AND NON-DISCLOSURE

- 2.1 Each Party agrees that it will use the Confidential Information of the other Party solely for the purpose of evaluating the Transaction and not for any other purpose and shall not disclose same, in whole or in part, to any third party. Neither Party shall share any Confidential Information with any person other than its Representatives who need to know the information for the purpose of evaluating the Transaction; provided, however, that such Representatives are first informed by the disclosing Party of the confidential nature of the information. Each Party agrees to (i) not to make any such disclosure or transmission of Confidential Information unless such Representatives have agreed to act in accordance with this Agreement, and (ii) that, in any event, it shall be responsible for any actions by any of its Representatives which are not in accordance with this Agreement.
- 2.2 Each Party further agree that, it will not, and will cause each of its Representatives not to, disclose to any person or entity (a) the fact that discussions or negotiations are taking place concerning a possible Transaction, (b) any of the terms, conditions or other facts with respect to such Transaction, including the status thereof, or (c) the existence of this Agreement, the terms hereof or that Confidential Information has been made available pursuant to this Agreement.
- 2.3 Each Party acknowledges and recognizes the intrinsic value, uniqueness, and significance of the Confidential Information relating to other Party’s respective businesses and operations.
- 2.4 In the event that either Party is required to disclose any Confidential Information by Applicable Law or pursuant to orders of any governmental or regulatory authorities or stock exchange, the disclosing Party shall (i) disclose such information only to the extent required; and (ii) to the extent practicably possible and permissible by Applicable Law, give the other Party (a) reasonable notice of such disclosure of Confidential Information prior to such disclosure; and (b) reasonable assistance in obtaining an order for protecting the information from public disclosure.

3 REPRESENTATION AND WARRANTIES

- 3.1 Each Party hereby represents and warrants to other Party that (i) it has full power, capacity, and authority to execute, deliver, and perform this Agreement and this Agreement constitutes a legally valid and binding obligation enforceable against the Party in accordance with its terms, and (ii) there are no ongoing or anticipated legal, administrative, arbitration, mediation, conciliation, or any other proceedings, claims, actions, governmental investigations, orders, judgments, or decrees that may adversely affect the Party's ability to perform

its obligations under this Agreement.

4 RIGHTS, OWNERSHIP, AND LICENSES

- 4.1 Both Parties acknowledge and agree that no rights, including those pertaining to Confidential Information, are being granted to either Party under any patent, trademark, mask work, right, or copyright owned by the other Party. It is explicitly stated that this Agreement does not confer any rights, ownership, or licenses to either Party with respect to the Confidential Information of the other Party or any other entity, except as expressly set forth within the terms of this Agreement.
- 4.2 Each Party acknowledges that all rights, titles, and interests in the Confidential Information remain the exclusive property of the disclosing Party. This Agreement does not grant either Party any ownership, intellectual property rights, or proprietary rights in relation to the disclosed Confidential Information, except as expressly provided herein.
- 4.3 Each Party understands that any unauthorized use, disclosure, or misappropriation of Confidential Information would be in violation of the rights of the disclosing Party. Each Party acknowledges that the obligations imposed by this Agreement, including the duty to maintain the confidentiality of the disclosed information, do not confer any proprietary or ownership rights to them.
- 4.4 Each Party agrees to strictly adhere to the terms of this Agreement and acknowledge that any rights to the Confidential Information not expressly granted herein are reserved solely for the disclosing Party. Neither Party shall claim any rights, ownership, or licenses to the Confidential Information, and shall not engage in any activities that infringe upon the rights of the other Party.
- 4.5 It is understood that the purpose of this clause is to clearly establish that this Agreement does not confer any rights, ownership, or licenses to either Party in relation to the Confidential Information of the other Party or any other entity, except as explicitly set forth within this Agreement.

5 TERM

This Agreement shall become fully effective on the date stated at the beginning and the confidentiality obligation under this Agreement shall remain in force until the expiration of 24 (twenty-four) months from the date of this Agreement ("**Term**").

6 OWNERSHIP AND RETURN OF MATERIALS

- 6.1 Each Party acknowledges and affirms that all Confidential Information disclosed by either Party remains the exclusive property of the disclosing Party. Upon expiry of the Term of this Agreement, regardless of the reason for termination, or at the request of either Party at any time before, the other Party shall undertake the following:
 - 6.1.1 Return of Confidential Information: Return to the other Party, without retaining any copies of Confidential Information received or accessed during the term of this Agreement. Further, each Party shall, and require its Representatives to destroy any analysis,

compilations, studies, abstracts, sketches, or any other physical embodiment or other documents prepared by any Representatives for its internal use which includes, utilizes, or reflects the Confidential Information. Any such destruction shall be confirmed in writing by each Party's director / chairman.

6.1.2 Obligation to Confirm Return: Upon request, each Party shall provide a written confirmation certifying the return of all Confidential Information, including an assurance that no copies or physical embodiments remain in the possession or control of the Party or their Representative.

6.1.3 Continuing Obligations: The obligations regarding the return / destruction of Confidential Information shall survive the termination or expiration of this Agreement and shall remain in effect until each Party has fully complied with these obligations.

7 NON-CIRCUMVENTION

7.1 **ABC** shall not at any time without the prior written consent of the Company, contact, solicit or attempt to solicit or engage in any business deals, arrangements or contracts with the Company's clients, service or product suppliers, directors, shareholders, members, trustees, beneficiaries, associates, agents, advisors, consultants, business associates, partners, investors, employees, and any potential clients even if not yet contracted, or in any other way compete with the Company or the aforementioned parties or in any way try to the aforementioned parties in any way whatsoever.

7.2 **ABC** shall not directly or indirectly circumvent, avoid, bypass, or preclude the Company in any transactions that **ABC** elects to enter and in any dealings (part, present or future), with any party so introduced to the **ABC** by the Company.

8 NON-SOLICIT AND NON-COMPETE

8.1 The Parties acknowledges and affirms that by virtue of this Agreement it shall have access to trade secrets, strategic information, customer information and related confidential information and shall have dealings with customers, distributors, logistics partners and suppliers of Company. In order to protect above mentioned information, Parties agrees to be bound by the non-compete and non-solicitation restrictions as set out below.

8.2 **ABC** agrees that during the Term and for a period of 24 (twenty-four) months immediately following the termination of this Agreement ("**Cooling-off Period**"), **ABC** shall not, whether directly or indirectly, or engage in any business activity which is similar to that of the business of the Company or have any controlling interest in any entity that markets, promotes, sells or provides any product or service which is engaged in the business of similar nature as that of the Company or invest or engage in any manner whatsoever in a business that is directly or indirectly in competition with or similar to the business of the Company including any

overseas enterprise that has substantial business presence in the Territory.

- 8.3 During the Term and for the Cooling-off Period, ABC shall not either directly or indirectly solicit, induce, recruit, or encourage any of Company's employees or consultants to leave their employment, or take away such employees, or attempt to solicit, induce, recruit, encourage or take away, customers or clients, existing or potential, of Company, either for itself or for any other person or entity.
- 8.4 The restrictions contained in this Agreement are reasonable and justified and are not greater than necessary for the legitimate preservation of the value and protection of the business, goodwill and/or other interests of the Company. In the event that any of the restrictions contained in Clause 8 are rendered void but would be valid if some part thereof would be deleted or the scope, period or area of application were reduced, the above restriction shall apply with the deletion of such words or such reduction of scope, period or area of application as may be required to make the restrictions contained in Clause 8 valid and effective.

9 INSIDER TRADING AND MARKET ABUSE

If ABC is listed on the stock exchanges, then, accordingly, the Parties and its Affiliates will adhere to the Securities and Exchange Board of India (Prohibition of Insider Trading) Regulations, 2015 as amended from time to time and the relevant provisions under the Companies Act, 2013 as applicable.

10 INDEMNITY

- 10.1 Each Party agrees to indemnify, defend, and hold harmless the other Party, their officers, directors, (collectively referred to as the “**Indemnified Parties**”) from and against any and all claims, demands, losses, liabilities, damages, costs, and expenses (including reasonable attorney's fees) incurred by the Indemnified Parties arising out of or in connection with any breach of this Agreement or unauthorized use, disclosure, or dissemination of the Confidential Information by either Party or their Representatives.
- 10.2 Each Party shall promptly notify the other Party of any such claim and shall cooperate fully in the defense of such claim, at their own expense, including providing necessary information, assistance, and access to relevant documents and witnesses.
- 10.3 This Clause 10 (*Indemnity*) is without prejudice to any other rights or remedies available to either Party under this Agreement, at law, or in equity. The indemnification obligations of both Parties shall survive the expiry of the Term of this Agreement and shall continue to be binding upon them and their successors, assigns, and legal representatives.

11 REMEDIES

11.1 Injunctive Relief

- 11.1.1 Each Party expressly acknowledges and agrees that, in the event of any breach or threatened breach of this Agreement, the non-breaching Party shall be entitled to seek injunctive relief from a court

of competent jurisdiction without the need to provide proof of actual loss or damages. The granting of injunctive relief by the court shall serve to restrain the breaching Party from engaging in any activities that would further violate or breach the terms of this Agreement.

11.1.2 Each Party reserves the right to pursue any and all other remedies at law or in equity that may be available to them, including seeking damages and / or instituting suit for specific performance, in addition to seeking injunctive relief, to protect their rights, interests, and the integrity of Confidential Information.

12 GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and interpreted in accordance with the laws of India. Each Party agrees to submit exclusively to the jurisdiction of the courts located in Bengaluru, Karnataka, for the resolution of any disputes arising out of or in connection with this Agreement.

13 ASSIGNMENT

Each Party acknowledges and agrees that it shall not assign, transfer, or sublicense any of its rights or obligations under this Agreement without the prior written consent of the other Party.

14 NOTICES

14.1 Any notice provided for in this Agreement shall be in writing and shall be sent by: (a) email, (b) personal delivery, or (c) prepaid post.

In the case of notices to the Company		In the case of notices to the [ABC]:	
Address	2 nd Floor, Ave Maria Complex, 100 ft Road, Jalahalli Cross Rd, Chokkasandra, Peenya, Bengaluru, Karnataka 560057, India	Address	
Attn	Leo Peter Charles	Attn	
Email	leopeter@janeaerospace.co.in	Email	

14.2 All notices shall be deemed to have been validly given on (a) the day immediately after the date of confirmation of transmission recorded on the sender's computer in case of email transmission, or (b) the date of delivery, where notice is given by personal delivery, and (c) in case (a), (b) do not apply, the expiry of 7 (seven) days after posting, if sent by pre-paid post or courier.

14.3 Either Party may, from time to time, change its address or representative for receipt of notices provided for in this Agreement by giving to the other Party not less than 15 (fifteen) days prior written notice.

15 MISCELLANEOUS

15.1 Further Assurances

Each Party shall, with reasonable diligence, do all such things, take all such actions, and provide all such reasonable assurances as may be required to

effectively carry on the full intent and meaning of this Agreement.

15.2 Waiver

Each Party acknowledges and agrees that no failure or delay by the other Party in exercising any right, power, or privilege under this Agreement will operate as a waiver thereof, nor will any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any right, power, or privilege hereunder. A waiver or consent shall be effective only for the purpose for which it is provided.

15.3 Entire Agreement

The Agreement constitutes the entire agreement of the Parties relating to the subject-matters of this Agreement and supersedes any and all prior agreements, including letters of engagement, either oral or in writing, between the Parties hereto with respect to the proposed transaction.

15.4 Partial Invalidity

If any provision of this Agreement or the application thereof to any person or circumstance is determined to be illegal, unenforceable, or invalid in whole or in part for any reason, such illegal, unenforceable, or invalid provisions or part(s) thereof shall be replaced with a provision, which is valid and enforceable and most nearly reflects the original intent of the invalid and unenforceable provision and such provision shall not affect the legality, enforceability, or validity of the remainder of this Agreement.

15.5 Counterparts

This Agreement may be executed in one or more counterparts, each of which when so executed and delivered shall be deemed an original but all of which together shall constitute one and the same instrument and any Party may execute this Agreement by signing any one or more of such originals or counterparts. The delivery of signed counterparts by facsimile transmission or electronic mail in "portable document format" (".pdf") shall be as effective as signing and delivering the counterpart in person.

IN WITNESS WHEREOF the Parties have caused this Agreement to be executed by their duly authorized representatives on the date stated at the beginning of this Agreement.

For and on behalf of the Company	For and on behalf of [ABC]
Name: Leo Peter Charles Title: Managing Director	Name: Title: